

Cambridge, and Lincoln, their Officers and Ministers, for executing of the Orders and Decrees of the said Commissioners, to the manifest peril of destruction, and inundation in many large levels and parts of the said Counties. And having by their Lordships like directions upon advised consideration, weighed and compared the said late undue proceedings, with the ancient Laws of this Realm, appearing in divers notable Records, in the very point now questioned, together with the continual concurring practise of ancient and late Times, and also the Opinion of the Lord Popham late Chief Justice, delivered in writing [825] very exactly and fully upon the questions, touching the authority and power of the said Commission, and thereupon made a report at large unto their Lordships this day in full Council of the whole state of the cause: Forasmuch as it thereby appeareth, that those Inundations and disturbances consist of 4 principal heads, wherein the extent of the Commission is questioned upon pretext and conceit of Law.

First, That the Commissioners of Sewers have not authority to cause new Banks, Dreyms or Sluces to be made where there hath not been any before. 2. That they cannot lay a tax or rate upon any Hundreds, Towns, or the Inhabitants thereof in general, but upon the first presentment and judgment to charge every man in particular according to the quantity of his Land or Common. 3. That they have not power sufficient to commit to prison persons refractory and disobedient to their orders, warrants, and decrees. And lastly, that actions of trespass, false imprisonment and other process at the Common Law, have been brought against the Commissioners or some of their Officers and Ministers, for executing their decrees and warrants; their Lordships finding in their wisdoms that it can neither stand with Law or common sense and reason, that in a cause of so great consequence the Law can be so void of providence, as to restrain the Commissioners of Sewers from making new works to stop the fury of the waters, as well as to repair the old when necessity doth require it, for the safety of the Country, or to raise a Charge upon the Towns, or Hundreds in general that are interested in the benefit or loss, without attending a particular survey or admeasurement of acres when the service is to have speedy and suddain execution, or that a Commission of so high a nature, and of so great use to the Common-wealth and evident necessity, and of so antient Jurisdiction both before the Statute and sithence, should want means of coercion for obedience to their orders, warrants and decrees, when as upon the performance of them, the preservation of thousands of his Majesties subjects, their lands, goods, and lives doth depend; and plainly perceiving that it will be a frustrating and overthrow to the authority of the said Commission, if the Commissioners, their Officers and Ministers shall be subject to every suit at the pleasure of the Delinquent in his Majesties Courts of Common Law, and so to weary and discourage all men from doing their duties in that behalf: For the Reasons aforesaid, and for the supream Reason above all reasons, which is the salvation of the Kings Lands and People, Their Lordships have Ordered, That the persons formerly committed by this Board for their contempts concerning this cause, shall stand committed untill they release or sufficiently discharge such actions, suits, and demands, as they have [826] brought at the Common Law against the Commissioners of Sewers, or any the Officers or Ministers of the said Commission; saving unto them nevertheless any complaint or suit for any oppression or grievance before the Court of Sewers or before this Table, if they receive not Justice at the Commissioners hands. And their Lordships further order, That Letters from this Table shall be written unto the Commissioners of the Counties aforesaid, and unto all other Commissioners of Sewers of like nature, when it shall be found needful, requiring, encouraging, and warranting them to proceed in the execution of their several Commissions according to former practise and usage, any late disturbance, opposition or conceit of Law, whereupon the said disturbance hath been grounded, notwithstanding; with admonition nevertheless, that care be taken that there be no just cause of complaint given by any abuse of the said Commission.

1114. THE LORD CHANCELLORS SPEECH TO SIR HENRY MOUNTAGUE, WHEN HE WAS SWORN CHIEF JUSTICE OF THE KINGS-BENCH.

Sir Henry Mountague,

The Kings Majesty in the governing of his Subjects, representeth the Divine Majesty of Almighty God ; for it is truly said of God, that *Infima per media ducit ad summa*. This I said lately in another place upon another occasion : this is my case, and this is your case, for after almost 14 years experience of your Wisdom, Learning, and Integrity, his Majesty is now graciously pleased to addresse unto you his Writ, under the Great Seal, calling you thereby to be his Chief Justice in this place, for Pleas to be holden before himself. A case rare, for you are called to a place vacant, not by death or cession, but by amotion and deposing of him that held the place before you, and that not as Sir William Thorpe in the time of the absence of King Ed. 3. when there was a *Custos Regni* ; nor as Sir Robert Tresilian in the disordered and unruly time of King R. 2. But in the peaceable and happy Reign of Great King James the great King of Great Brittain, wherein you see the Prophet Davids words true, He putteth down one, and setteth up another ; a Lesson to be learned of all, and to be remembred and feared of all that sit in Judicial places.

Your wisdom, and my weakness, is such, as there needeth no more to be said, and yet somewhat more I must say, though I speak it with pain.

To instruct by precepts is a long and uncertain way, by examples is more short and effectual : if Precepts need, the Kings Speech in [827] the Star-Chamber was such as nothing can be added, yet some incidents there be, that are fit to be remembred.

It is dangerous in a Monarchy, for a man holding a high and eminent place, to be ambitiously popular : take heed of it.

As it is a fault in a Judge to be too remiss, and too tender and soft in punishing offences ; so it is a fault as great or greater to be too sharp or severe ; you know who saith, *Noli esse nimis justus*, and *severitas* strained too far, sometime becomes *sæva veritas*, if not *sæva crudelitas* ; therefore beware of these two.

In hearing of Causes, you are to hear with patience, for patience is a great part of a Judge ; better bear with prolixity and impertinent discourse of Advocates and Lawyers, then rashly for default of the Lawyer to overthrow the Clients cause. In the one you lose but a little time ; by the other the Client loseth his right which can hardly be repaired. And remember, that *Deus dirigit mansuetos in judicio*. Yet you are to admonish, to reprehend, and to correct Lawyers, that observe not that discretion and duty which becomes them. It is said in France that there is *Rabiosa litigandi consuetudo*, if you find this in any brabbling and tumultuous Lawyers, you are not only to injoyn them silence, but to sequester them from their practice and exercise before you, if you see cause ; but still with this care and respect, that the Clients Cause be not prejudiced.

For Precepts this is enough, if not too much.

For Examples much is to be said, but to you there needs little. Great judgment and discretion is required in consideration of Examples, to ensue the good, and to eschew the evil ; and this is certain, that one evil example doth more harm, then ten good examples can do good. But for you, all may be closed in one word. Remember Sir Edward Mountague your worthy Grand-father, God made him Great and Honourable in his life, and hath crowned and blessed him with great happinesse in his Nephews and posterity, one a Reverend Prelate and Father, and a great Light in the Church of God ; some others imployed in civil estate, do manage the affairs and businesses committed to their charge, with such wisdom, judgment, dexterity and integrity as they are second to none, but may be compared to any of their rank, place, and degree. And your self now called to succeed your worthy Grand-father, and to sit in this high place to be his Majesties Chief Justice for Pleas to be holden before himself, and called thereunto upon amotion and deposing of another by the great Judgment and Wisdom of the great King of Great Brittain, whose royal Vertues will be admired in all posterity.

You need not to seek further examples for you to follow, but rest [828] and stay your self upon the vertues of your worthy Grand-father : when he sate Chief Justice in the Common Pleas, you shall not find he ever said vauntingly, That he would make latitatus latitare. When he did sit Chief Justice in this place, he contained himself within the word of the Writ to be the Chief Justice as the King called him, ad placita coram nobis tenenda, but did not arrogate or aspire to the high title of capitalis justitia Angliæ, or capitalis justiciarius Angliæ, an Office and Title which Hugh de Burgo and some few others held in the time of the Barons Wars, and whilst the fury thereof was not well ceased. He devised not any new construction of Laws against Commissioners and Judges of Sewers, nor to draw them into the danger of Præmunire : and whilst they were in this Court disputing of tricks and moot points concerning taxes, and making new gutters or walls, to suffer a great part of the Realm to be surrounded and overflown ; for the winds nor the Sea could not be stayed with such new constructions and moot points. He never strained the Statute of 27 Ed. 3. Cap. 1. to reach to the Chancery, and to bring that Court and the Ministers thereof, and the Subjects that sought Justice there, to be in danger of Præmunire ; an absurd and an inept new construction of that old Statute ; you know whose word it is : and how vain it hath appeared upon full examination thereof, you do also know very well.

He never made teste Edwardo Mountague to jumble with teste meipso, but knew that the Kings Writ, teste meipso, was his warrant to sit in this place.

He doubted not, but if the King by his Writ under the Great Seal, commanded the Judges that they should not proceed Rege inconsulto, then they were dutifully to obey, and to consult with the King not in this Court but in another, that is, the Court of Chancery.

He challenged not power for the Judges of this Court to correct all misdemeanors as well extrajudicial as judicial, nor to have power to judge Statutes and Acts of Parliament to be void, if they conceived them to be against common right and reason ; but left the King and the Parliament to judge what was common right and reason. I speak not of impossibilities or direct repugnances.

These Examples and many more you may observe in the actions of your worthy Grand-father. Wherefore I will say no more, but set God before your eyes a Jove principium. And so often as you shall sit down in this place remember your Grand-father, and study and endeavour to imitate his Vertues, and decline from those Vices which he hated and eschewed.

Remember also the removing and putting down of your late Predecessor, and by whom, which I often remember unto you, that [829] is, by the Great King of Great Brittain, whose great Wisdom and Royal Vertues and Religious Care, for the Weal of his Subjects, and for the due administration of Justice, can never be forgotten, but will remain admirable to all posterity. Endeavour to serve him, and the Crown, and Common-Wealth diligently and faithfully, and undergo this great Office with alacrity and chearfulness. And because this place hath stood hovering all this Term, it may be matters have been put off, and not expedited as they should ; if there have been any stay or delay, supply it now with your diligence, and alwayes comfort your self with this, that sithe the Kings Majesty hath enabled you, who shall or can disable you.

1115. SIR HENRY MOUNTAGUES SPEECH.

My most Honourable Lord, It was my word when the King was graciously pleased to call me to be a Serjeant, Deo, Regi, & Legi. And I must acknowledge the great favours I have received from him ; for when I do consider my desert, I wonder what I am, that he should exalt me to this high place. Although my Brother, whom your Lordship hath been pleased to remember, is one that is near the King, yet he never solicited in my behalf in this matter ; neither did I know that I should be the man, whom it should please the King to advance unto this high place, until such time as I received the Warrant from his Majesty. But I find the Wisemens saying true in great

Actions, Cor Regis in manibus Domini, and what is done factum est a Domino. I will not inquire into my vow, but I will pay my vow, and pro posse meo, I will endeavour my best.

It hath been a fashion of those that have gone before me to excuse themselves; and this I might do better than they: yet I dare not disable my self, lest I should tax my Masters Judgment. God I hope will supply what is defective in me.

My Lord, what a spur have you put to prick me forward, in mentioning my Grand-father? his pattern will I follow, I have some of his Lands, and I have many of his Books, and Notes of his reforming misorders of this Court to the ancient presidents. I will take advice of the Antients, what is best; and of the latter times what is fittest.

And now my Lord, I must first offer thanks to your Lordship, and secondly make a suit unto you; I must thank you for your favour and countenance shewed towards me from time to time, you made me Recorder of London, and caused me to be the Kings Serjeant, besides other favours. Et hæc fuit pars magna amoris. My suite now is, as hitherto you have cherished me, that from hence-[830]-forth you will defend me. And I will for my own part avoid four faults, idleness, corruption, cowardliness, and I will not be a heady Judge. First, I will not be idle nor over-busie. For the second, I have no need to be corrupt, neither in action nor affection; for I have Estate sufficient. And for my Courage, if I fear, let me be amoved: I will be a Lyon in courage not in cruelty. And for the fourth, I will be glad of good counsel, and I will not be busie in stirring questions, especially of Jurisdictions.

It comforts me to see the Sages that sit there, the ancient my Predecessor in being Recorder of London; the other my fellow of the Middle Temple; and the third, my Companion in the Circuit.

And yet I am discomfited in three things, in the loss of my profit, pleasure, and liberty; for a man in a high place is a threefold servant, to fame, to time, to friends; but as I said at first, I will devote my self Deo, Regi, & Legi.

1116. GOODSON *vers* DUFFIELD.

Court de Pipowders. Prescriptiō.

Mich. 10 Jac. En Bank le Roy, bñe derror fuit la port sur ù judgeñt done en le Court de Pipowders en Rochester, lou le case fuit que A. deins le ville luy oblige de payer al B. 150l. le 1. jour de May al meason de B. en Rochester, l'obligation fuit mise en suit en le Court de Pipowders la tenus 24 Septembris; le def. plead payment al meason, & issue fuit prise sur ceo & trove encounter le def. & judgement pro querente. 1. Error assigne fuit que le Court de Pipowders est incident al chescū faire & market, & ne poit estre p prescripcōn. Sed le Court encounter ceo, car ù Court de Pipowders poit estre per prescripcōn. 2. Error assigne fuit que le Court de Pipowders est plead per prescripcōn, & auxi per grant & charter, quel est destruccōn del prescriptiō. Sed Curia encounter hoc, car le prescription remain ù non que soit alter per le charter. 3. Error assigne fuit que lou un Court de Pipowders doit tener pleas des choses solement que arise en le temps del faire ou market, ore cest obligacōn appiert destre fait en May devant. Sed curia encounter hoc auxi, quia lou un Court de Pipowders est per prescription la ceo poit tener plea des choses devant; mes, lou incident al faire tantum, ne poit: & issint le livre 2 & 3 Phil. & Mar. Dyer 132. que accōn port al Sturbridge faire sur un contract fait en le faire l'an devant fuit error, est bone Ley, quia n'appearust al Court que le Court de Pipowders fuit per prescription la, come est en nñe case Le 4 error assigne fuit que le prescription fuit alledge de tener un Court de Pipowders devant le Mayor & deux citizens, & le [831] plea appiert destre tenus devant le deputy del Mayor & 2. citizens. Et ceo per curiam est error. 5. Error assigne fuit que l'issue fuit mis-joyne, car le payment est plead al meason le pl' en Roch. lou duissoit av' estre plead apud Rochest' in domo mansionali querent. Et hoc semble error auxi. Pur que le judgement fuit reverse. Et nota Mich. 41 & 42